

25NWCV00621 25NWCV00621

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-06-23

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Case Number: 25NWCV00621 Hearing Date: June 23, 2026 Dept: R

#13

NEW CONCEPT CABINET

SOLUTIONS INC v. VELEZ

CASE

NO.: 25NWCV00621

HEARING:

Tuesday, June 23, 2026, at 9:30 AM

Plaintiff NEW CONCEPT CABINET SOLUTIONS INC.'s Motion

for Monetary Sanctions is DENIED. The Court continues the matter and orders additional briefing on potential

issue/evidentiary sanctions.

Moving party to give notice.

Background

On February 20, 2025,

Plaintiff NEW CONCEPT CABINET SOLUTIONS ("Plaintiff") filed this Breach of

Contract action against Defendants JOSE GUADALUPE VELEZ ("Defendant") and DOES

1 through 10.

Plaintiff's Complaint alleges the following causes

of action:

(1) Breach of Contract;

(2) Quantum Meruit;

(3) Indebitatus Assumpsit;

(4) Monies Due; and

(5) Unjust Enrichment

On July 2, 2025, Plaintiff

propounded discovery onto Defendant. On January 6, 2026, the Court granted

Plaintiff's Motions to Compel Further Responses to Form and Special

Interrogatories; Requests for Admissions; and Requests for Production.

Defendant failed to comply with this Court's order.

Legal Standard

The court may impose a monetary sanction ordering that

one engaging in the misuse of the discovery process, or any attorney

advising that conduct, or both pay the reasonable expenses, including

attorney's fees, incurred by anyone because of that conduct. The

court may also impose this sanction on one unsuccessfully asserting that

another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (CCP 2023.030(a).)

Misuse of the discovery process includes disobeying a court order to provide discovery. (CCP § 2023.010(g).)

Defendant disobeyed this Court's January 6, 2026, order. However, the Court does not believe additional monetary sanctions will induce Defendant's compliance. Indeed, the Court imposed monetary sanctions in its January 6, 2026, and Defendant still failed to provide discovery responses.

Instead, imposing potential issue or evidentiary sanctions are more appropriate. Thus, the Court continues the hearing and orders supplemental briefing from Plaintiff on what issue/evidentiary sanctions should be issued. The Court also requests briefing from Defendant on why Defendant failed to obey this Court's order.

The Court will confer with the parties to select a continued hearing date.